

		under Penal Code section 496, subdivision (c). (<i>Tu Le v. Prestige Community Credit Union</i> (C.D. Cal., Nov. 6, 2023, No. 8:22-CV-00259-JVS (KESX) 2023 WL 9689133, at *9; <i>May v. Google LLC</i> (N.D. Cal., Nov. 4, 2024, No. 24-CV-01314-BLF) 2024 WL 4681604, at *9.) However, the <i>Tu Le</i> Court also held “the civil claim under California Penal Code § 496(c) regarding recovery for costs of suit and reasonable attorney’s fees is subject to a three-year statute of limitations.” (<i>Tu Le v. Prestige Community Credit Union</i> (C.D. Cal., Nov. 6, 2023, No. 8:22-CV-00259-JVS (KESX) 2023 WL 9689133, at *10.) The Court finds the claim is governed by the three-year statute of limitations. (<i>See, Naftzger v. American Numismatic Society</i> (1996) 42 Cal.App.4th 421, 433-434.) Neither Johnson nor Dehghanmanesh met their initial burden to show Plaintiff’s claim was barred by the applicable statute of limitations. Johnson showed Plaintiff was aware that Plaintiff’s and Johnson’s capital accounts were out of whack by March 30, 2022. (JMF No. 7 and 8; DMF No. 7 and 8.) Plaintiff commenced this action on February 29, 2024, less than two years after discovering the discrepancy. Because neither defendant did not meet his initial burden, the burden does not shift to Plaintiff to raise a triable issue of material fact. (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468.) Accordingly, Defendants’ motions are denied. Plaintiff shall give notice.
14.	2025-1517586 Je Beaute, Inc. vs. Guo	<i>Continued from 5/20/26 for lack of a Mandarin interpreter.</i>